BUREAU OF LABOR AND INDUSTRIES
WAGE AND HOUR DIVISION

PAYROLL/CERTIFIED STATEMENT FORM WH-38
FOR USE IN COMPLYING WITH ORS 279C.845*

PRIME CONTRACTOR X SUBCONTRACTOR ☐ PAYROLL #: **3** FINAL PAYROLL ☐

Business Name (DBA): **Sample Construction** Phone: **(971) 555-0136** CCB Registration Number: **1234567**

Project Name: **Rock Creek Middle School** Project Number: **987654** Type of Work: **General Contractor**

Street Address: **500 Pine St , Portland OR 97232**

Mailing Address: **PO Box 3569 , Portland OR 97252**

Project Location: **14897 SE Parklane Dr, Happy Valley 97015**

Project County: **Clackamas**

Date Pay Period Began: **Feb. 4, 2016** Date Pay Period Ended: **Feb. 17, 2016**

THIS SECTION FOR PRIME CONTRACTORS ONLY

Public Contracting Agency Name: **North Clackamas School District**
Phone: **(503) 555-0127**
Date Contract Specifications First Advertised for Bid: **April 7, 2015**
Contract Amount: **$5,656,012**

THIS SECTION FOR SUBCONTRACTORS ONLY

Subcontract Amount:
Prime Contractor Business Name (DBA):
Prime Contractor Phone: ( )
Prime Contractor's CCB Registration Number:
Date You Began Work on the Project:

(1)	(2)		(3) DAY AND DATE							(4)	(5)	(6)	(7)	(8)	(9)	(10)	(11)
NAME, ADDRESS AND EMPLOYEE'S IDENTIFICATION NUMBER*	CLASSIFICATION (INCLUDE GROUP # & APPRENTICESHIP STEP IF APPLICABLE)		M 2/4	T 2/5	W 2/6	Th 2/7	F 2/8	Sa 2/9	Su 2/10	TOTAL HOURS	HOURLY BASE RATE	HOURLY FRINGE BENEFIT AMOUNTS PAID AS WAGES TO EMPLOYEE	GROSS AMOUNT EARNED (see directions)	ITEMIZED DEDUCTIONS FICA, FED, STATE, ETC	NET WAGES PAID	HOURLY FRINGE BENEFITS PAID TO BENEFIT PARTY, PLAN, FUND, OR PROGRAM	NAME OF BENEFIT PARTY, PLAN, FUND, OR PROGRAM
			HOURS WORKED EACH DAY														
Joe Schmoe **100 Main St** **Portland OR 97222**	**Carpenter Gp 1**	**OT**									**$45.00**		**$90.00**			**$5.20**	**Med - BC/BS**
																$4.95	**Pension - Fin. Grp**
		ST	**3**							**3**	**$30.00**	**$0.00**		**$316.38**	**$949.13**	**$1.33**	**Vacation**
		Schedule 5/8 X 4/10 ☐; Reg Hrly Schd: 8am- 4:30pm											**$1,265.50**				
Rick Frick **200 Oak St** **Portland OR 97232**	**Carpenter Gp 1** **60% Apprentice**	**OT**									**$27.00**		**$54.00**			**$4.50**	**Med - BC/BS**
																$5.85	**Pension - Fin. Grp**
		ST	**3**							**3**	**$18.00**	**$0.00**		**$236.44**	**$709.31**	**$1.13**	**Vacation**
		Schedule 5/8 X 4/10 ☐; Reg Hrly Schd: 8am- 4:30pm											**$945.75**				
Carl Schmarl **300 Elm St** **Portland OR 97232**	**Laborer Gp 1**	**OT**						**1**		**1**	**$37.50**		**$128.50**			**$5.00**	**Med - BC/BS**
																$1.00	**Vacation**
		ST	**3**							**3**	**$25.00**	**$4.00**		**$290.94**	**$872.81**		
		Schedule 5/8 X 4/10 ☐; Reg Hrly Schd: 8am- 4:30pm											**$1,163.75**				
Ed Bread **400 Ash St.** **Portland OR 97232**	**Laborer Gp 1**	**OT**									**$37.50**		**$105.00**				
		ST	**3**							**3**	**$25.00**	**$10.00**		**$280.56**	**$841.69**		
		Schedule 5/8 X 4/10 ☐; Reg Hrly Schd: 8am- 4:30pm											**$1,122.25**				
		OT															
		ST															
		Schedule 5/8 ☐ 4/10 ☐; Reg Hrly Schd: _____to_____.															

* Although this form has not been officially approved by the US. Department of Labor, it is designed to meet the requirements of both the state PWR law and the federal Davis-Bacon Act.

WH-38 (Rev. 06/16)

THIS FORM CONTINUED ON REVERSE

CERTIFIED STATEMENT

Date: **Feb 18, 2016**

I, **Jane Sample** **Owner**
(NAME OF SIGNATORY PARTY) (TITLE)

do hereby state:

(1) That I pay or supervise the payment of the persons employed by:

SAMPLE CONSTRUCTION
(CONTRACTOR, SUBCONTRACTOR OR SURETY)

on the **Rock Creek Middle School Project** ; that during the payroll period
(BUILDING OR WORK)

commencing on the **4th** day of **February, 2016,** and ending the **17th** day
(MONTH) (YEAR)

of **February, 2016**, all persons employed on said project have been paid the
(MONTH) (YEAR)

full weekly wages earned, that no rebates have been or will be made either directly or indirectly to or on behalf of said **SAMPLE CONSTRUCTION** from the
(CONTRACTOR, SUBCONTRACTOR OR SURETY)

full weekly wages earned by any person, and that no deductions have been made either directly or indirectly from the full wages earned by any person, other than permissible deductions as specified in ORS 652.610, and as defined in Regulations, Part 3 (29 CFR Subtitle A), issued by the Secretary of Labor under the Copeland Act, as amended (48 Stat. 948, 63 Stat. 108, 72 Stat. 967; 76 Stat. 357; 40 U.S.C. 276c), and described below:

Federal withholding, FICA, State withholding, WBF

(2) That any payrolls otherwise under this contract required to be submitted for the above period are correct and complete; that the wage rates for workers contained therein are not less than the applicable wage rates contained in any wage determination incorporated into the contract; that the classifications set forth therein for each worker conform with work performed.

(3) That any apprentices employed in the above period are duly registered in a bona fide apprenticeship program registered with a state apprenticeship agency recognized by the Bureau of Apprenticeship and Training, United States Department of Labor, or if no such recognized agency exists in a state, are registered with the Bureau of Apprenticeship and Training, United States Department of Labor.

I HAVE READ THIS CERTIFIED STATEMENT, KNOW THE CONTENTS THEREOF AND IT IS TRUE TO MY KNOWLEDGE:

Jane Sample , Owner
(NAME AND TITLE)

(SIGNATURE AND DATE)

In addition to completing (1) - (3), if your project is subject to the federal Davis-Bacon Act requirements, complete the following section as well:

(4) That:

(a) WHERE FRINGE BENEFITS ARE PAID TO APPROVED PLANS, FUNDS OR PROGRAMS

□ - In addition to the basic hourly wage rates paid to each laborer or mechanic listed in the above referenced payroll, payments of fringe benefits as listed in the contract have been or will be made to appropriate programs for the benefit of such employees, except as noted in Section 4(c) below.

(b) WHERE FRINGE BENEFITS ARE PAID IN CASH

□ - Each laborer or mechanic listed in the above referenced payroll has been paid, as indicated on the payroll, an amount not less than the sum of the applicable basic hourly wage rate plus the amount of the required fringe benefits as listed in the contract, except as noted in Section 4(c) below.

(c) EXCEPTIONS

EXCEPTION (CRAFT)	EXPLANATION

REMARKS:

NAME AND TITLE SIGNATURE

THE WILLFUL FALSIFICATION OF ANY OF THE ABOVE STATEMENTS MAY SUBJECT THE CONTRACTOR OR SUBCONTRACTOR TO CIVIL OR CRIMINAL PROSECUTION. SEE SECTION 1001 OF TITLE 18 AND SECTION 231 OF TITLE 31 OF THE UNITED STATES CODE.

FILE THIS FORM WITH THE PUBLIC AGENCY ASSOCIATED WITH THE PROJECT

NOTE TO CONTRACTORS: YOU MUST ATTACH COPIES OF THIS FORM TO EACH OF YOUR PAYROLL SUBMISSIONS ON THIS PROJECT.

INSTRUCTIONS AND ADDITIONAL FORMS ARE AVAILABLE ON OUR WEBSITE: WWW.OREGON.GOV/BOLI.